unconstitutional because it violated the basic structure of the Constitution, he used the case as a vehicle to challenge constitutional amendments passed during Indira Gandhi's tenure as prime minister.

The Congress government had secured amendments to Article 368 of the Constitution to give Parliament unfettered powers to amend the Constitution and also to take away the jurisdiction of the courts to review such amendments. Therefore, the first issue for the court's consideration in the Minerva Mills case was whether the amendments to the Constitution adding two new clauses to Article 368 (with a view to nullifying the Kesavananda judgement) were valid. (If these amendments were invalid, then the Janata government's amendments deleting the right to property as a fundamental right would also be open to judicial scrutiny.) Palkhivala aimed to do in the Supreme Court what the Janata government failed to do politically – nullify the Congress government's constitutional amendment overruling the Kesavananda judgement. The specific circumstances of the Bangalore mill soon fell into the background, with the vexed question of whether there were any limits at all on Parliament's power to amend the Constitution once again taking centre stage.

The amendments to Article 368 presented a formidable obstacle to the Kesavananda judgement. The reason for this was that although seven of the thirteen judges in the Kesavananda case held that Parliament lacked the power to alter the basic structure of the Constitution, they arrived at this conclusion for different reasons. While some of the judgements were based on the idea that the word 'amendment' could not mean replacement with a practically new and different Constitution, others noted that the limitation on Parliament's power to amend the Constitution was implied in the scheme of the Constitution.[12] By specifically clarifying that the power to 'amend' was boundless, the Congress government's amendments appeared to decisively address the first set of judgements.

Palkhivala formulated three powerful arguments in seeking to convince the Supreme Court to dislodge the amendments. First, 'the donee of a limited power cannot, by the exercise of that very power, convert the limited power into an unlimited one'.[13] To do so would allow Parliament, a creature